

STATE OF NEW YORK

2589--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 21, 2025

Introduced by M. of A. KELLES, LUPARDO, JACOBSON, MEEKS, SANTABARBARA, OTIS, EPSTEIN, BUTTENSCHON, SEAWRIGHT, SIMON, STECK, DAVILA, REYES, COLTON, ANGELINO, BURDICK, WEPRIN, SHIMSKY -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil rights law, in relation to waiving the state's sovereign immunity to claims under the Americans with Disabilities Act of 1990, the Fair Labor Standards Act of 1938, the Age Discrimination in Employment Act of 1967, and the Family and Medical Leave Act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The civil rights law is amended by adding a new section 16
2 to read as follows:

3 § 16. Waiver of state immunity. The state hereby waives its sovereign
4 immunity in state and federal courts with regard to all claims, actions
5 and proceedings brought pursuant to the federal Americans with Disabili-
6 ties Act of 1990 (P.L. 101-336, as amended), the federal Fair Labor
7 Standards Act of 1938, the federal Age Discrimination in Employment Act
8 of 1967, and the federal Family and Medical Leave Act. The provisions
9 of such acts shall apply to the state, and any instrumentality or poli-
10 tical subdivision thereof.

11 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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